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BEFORE THE FEDERAL MARITIME COMMISSION

RECEIVED

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FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a **GALAWAY** )  
INTERNATIONAL, )  
 )  
Complainant, )  
 )  
v. )  
 )  
WORLD EXPRESS SHIPPING, )  
TRANSPORTATION AND )  
FORWARDING SERVICES, INC. )  
an Illinois corporation, d/b/a )  
W.E.S.T. FORWARDING SERVICES, )  
(FMC Lic. #3118-R), )  
 )  
Respondent. )

Docket No. 00-04

**WORLD EXPRESS SHIPPING TRANSPORTATION AND  
FORWARDING SERVICES, INC.'S MOTION FOR PROTECTIVE ORDER  
AND RESTRAINING ORDER**

Respondent WORLD EXPRESS SHIPPING TRANSPORTATION AND FORWARDING SERVICES, Inc. ("WEST"), by and through its undersigned attorneys, moves for a protective order and a restraining order regarding Peter Janetzki, and as grounds therefore states:

1. Counsel for Al Kogan, Jonathan Clark Green, has indicated he will be deposing Mr. Janetzki on Thursday, July 27, 2000 at 9:00 a.m. at the offices of Jonathan Clark Green located at 350 North **LaSalle** Street, Suite 800, Chicago, IL 60610-4798. A copy of the Notice of Deposition is attached.
2. Peter Janetzki is a former employee/director of **WEST**.
3. Mr. Janetzki's employment with WEST was terminated on February 2, 1998.

4. On February 5, 1998, Mr. **Janetzki** and Jean **DeKeyser**, President of **WEST** signed a letter agreement ("Letter Agreement"). In this Letter Agreement, Mr. Janetzki promised not to, among other things, divulge any confidential information regarding **WEST** and not to make any disparaging or derogatory remarks regarding **WEST** or its officers or directors, shareholders, employees, attorneys, agents, business operation personnel, **affiliates** or subsidiaries. A copy of the said Letter Agreement is attached.

5. Respondent is greatly concerned that Mr. Janetzki's testimony would breach the Letter Agreement and respondent thus requests that a protective order be granted protecting **Mr. Janetzki** from having to testify and a restraining order preventing Mr. Janetzki from testifying as to the facts, circumstances and opinions, which would breach the said Letter Agreement.

6. Respondent also requests that Complainant Al Kogan be prevented from using any information he has already received from Mr. **Janetzki**, that would violate the said Letter Agreement.

7. Respondent is entitled to such a protective order and restraining order. See, Roll Svstems. Inc. v. Shupe, No. 97-12689-GAO, 1998 U.S. Dist. LEXIS 3142 (Jan. 22, 1998, D. Mass.); Robert E. Hull v. Nozcom, Inc., 750 F.2d 1547 (11th Cir. 1985); Uncle D's Baker, Inc. v. O'Rourke, 938 F. Supp. 1450 (N.D. Ia. 1996).

8. Since counsel for Kogan and counsels for **WEST** will be in Chicago the week of July 24th conducting depositions in connection with this case, Respondent requests an oral hearing with Judge Kline either on Monday, July 24th or Tuesday, July 25th at a time convenient for Judge Kline, wherein the parameters and scope of Mr. Janetzki's testimony can be delimited.

9. Respondent also respectfully suggests that Judge Kline be present for Mr. Janetzki's deposition via telephone on July **27, 2000** at 9:00 a.m.

WHEREFORE, Respondent WEST respectfully prays for a protective order and a restraining order concerning Mr. **Janetzki**.

Respectfully submitted,

**SANDLER, TRAVIS & ROSENBERG, P.A.**

Attorneys for Respondent

The Waterford - Suite 600

5200 Blue Lagoon Drive

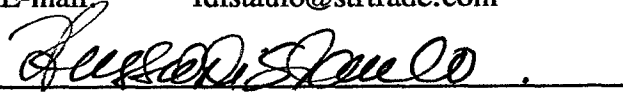
Miami, Florida 33126

Telephone: (305) 267-9200

Facsimile: (305) 267-5 155

E-mail: [fdistaulo@strtrade.com](mailto:fdistaulo@strtrade.com)

By:



Francesca Russo-Di Staulo

Peggy Louie Chaplin

**SANDLER, TRAVIS & ROSENBERG, P.A.**

111 South Calvert Street

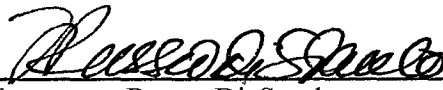
**Baltimore, MD 21202**

Telephone: (410) 385-5208

Facsimile: (410) 837-2441

**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that a true and correct copy of the foregoing World Express Shipping, Transportation and Forwarding Services, Inc. 's Motion for Protective Order and Restraining Order was served by facsimile this 21st day of July, 2000 upon Jonathan Clark Green, Esq., Jonathan Clark Green, P.C., 350 North LaSalle Street, Suite 800, Chicago, IL 60610-4798.

  
\_\_\_\_\_  
Francesca Russo-Di Stauro

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## BEFORE THE FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY  
INTERNATIONAL,

Complainant,

v.

WORLD EXPRESS SHIPPING,  
TRANSPORTATION AND FORWARDING  
SERVICES, INC., an Illinois corporation,  
d/b/a W.E.S.T. FORWARDING SERVICES  
(FMCLic.# 311S-R),

Respondent.

Docket No. 00-04

HON. NORMAN D. KLINE

NOTICE OF DEPOSITION

TO: Peter Janetzki  
621 Newbury Lane  
Schaumburg, IL 60173

Peggy Chaplin  
SANDLER, TRAVIS & ROSENBERG, P.A.  
111 South Calvert Street  
Baltimore, MD 21202

Francesca Russo-Di Staulo  
SANDLER, TRAVIS & ROSENBERG, P.A.  
The Waterford - Suite 600  
5200 Blue Lagoon Drive  
Miami, FL 33126-2022

PLEASE TAKE NOTICE that the deposition of **PETER JANETZKI** ("Deponent"), by consent as a third party, and as an expert in the shipping and freight forwarding business, in the above-captioned case has been scheduled to be taken, pursuant to the **Rules of the Federal Maritime Commission** and the **Federal Rules of Civil Procedure**, on **Thursday, July 27, 2000**, at the following time and place listed below, by an attorney for the Complainant **Al Kogan d/b/a Galaway International**, before a **notary public** or **some** other officer authorized by law to administer oaths:

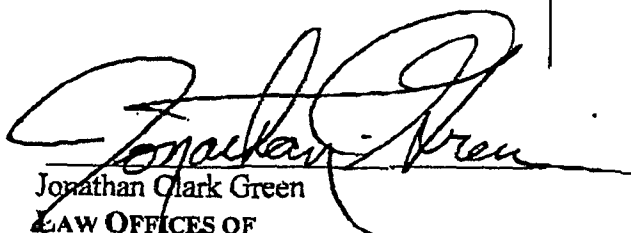
9:00 a.m.

LAW OFFICES OF JONATHAN CLARK GREEN, P.C.  
350 North LaSalle Street, Ste. 800  
Chicago, IL 60610-4798

Deponent will **testify** to all facts and circumstances **surrounding** the daily workings of WEST Forwarding Services **immediately** prior to the shipment that is **the** subject of **this** suit, the **policies** and procedures of WEST Forwarding Services and its related entities, and the accepted standards of care in the freight forwarding and shipping business in the Chicago **area** as **they** relate **to the facts** in this case. **In addition**, Deponent will produce any **and** all documents in his or her possession related to the subject shipment and the policies **and** procedures of WEST Forwarding **services** and **its** related entities.

These items will be inspected and may be **copied** at the time of the deposition. Deponent will **not be required to surrender the original items**.

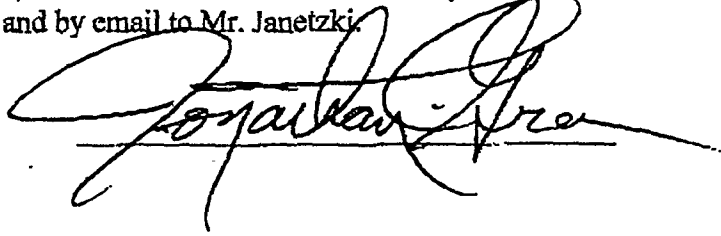
Respectfully submitted,



Jonathan Clark Green  
LAW OFFICES OF  
JONATHAN CLARK GREEN, P.C.  
350 North LaSalle St., Suite 800  
Chicago, IL 60610-4798  
(312) 494-1000

**CERTIFICATE OF SERVICE**

The undersigned, being **first** duly sworn upon oath, deposes and states that a copy of the foregoing NOTICE OF DEPOSITION for Peter Janetzki was served by U.S. mail, proper postage prepaid, on the above **names** at the **above** addresses, as well as filed with the Secretary of the Federal Maritime Commission, on July 19, 2000, and was also served on that date by facsimile transmission to Ms. Chaplin and Ms. Di Staulo and by email to Mr. Janetzki.



SUBSCRIBED and SWORN t  
before me this 19<sup>th</sup> day  
of July, 2000.

\_\_\_\_\_  
Notary Public

Sent by: LEVIN &amp; GINSBURG

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08/30/00 9:43; JaxFax #70; Page 2

February 5, 1988

Mr. Peter Janetzki  
621 Newbury Lane  
Schaumburg, Illinois 60173

RE: Resignation from Employment

Dear Peter:

This letter agreement ("Letter Agreement"), when executed by you, will document your agreement with World Express Shipping, Transportation and Forwarding Services, Inc. ("WEST"), regarding your resignation from your employment and your position as a Director with WEST as of February 2, 1988 ("Termination Date").

1. Termination of Employment and Resignation as a Director. Your employment with WEST terminated, and you have resigned as a Director of WEST, as of the Termination Date.
2. Acknowledgment. You acknowledge that you currently own twenty thousand (20,000) shares of the common stock of WEST (the "Peter Shares"). You further acknowledge that WEST owns, controls and has exclusive access to proprietary information as to the operations, processes, methods and accumulated experience incidental to WEST's business, including, without limitation, those matters not generally known to the public or the industry in which WEST is or may become engaged, and which pertain to WEST's business in connection with advertising, systems, software, marketing, selling, customer lists, prospect lists, fee and billing information and practices, sales figures, concepts, ideas, trade secrets and market research (collectively, the "Confidential Information"). You further acknowledge that all the Confidential Information is a value asset of WEST, and its sole and exclusive property, and that during your employment with WEST, WEST divulged to you or caused you to come into possession of or have knowledge of certain of that Confidential Information, which, but for your employment by WEST, would not have been disclosed to you.
3. Return of Confidential Information. As of the date of your execution of this Letter Agreement, you will deliver or cause to be delivered to WEST all of the Confidential Information still in your possession or control, including, without limitation, all documents, both originals and copies, containing Confidential Information, and all books, catalogs, brochures, video tapes, client and prospect lists, fee and billing information, employee and other manuals, plans, programs, software and other documents, materials or media furnished to or acquired by you as a result of or during the course of your employment by WEST.
4. Severance Pay. You understand and acknowledge that WEST has no severance policy, and that except for this Letter Agreement, WEST is under no obligation to provide any severance benefits to you. Notwithstanding WEST's absence of any severance policy, commencing eight (8) days after each of us executes this Letter Agreement, and so long

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Page -2-

Mr. Peter Janotzki

February 5, 1998

mm this Letter Agreement is not revoked by you prior to the expiration of such eight- (8) day period:

4.1 WEST will pay to you, in accordance with WEST's payroll practices from time to time in effect, your current salary, including car allowance, through March 31, 1998, at your rate of pay in effect just prior to the Termination Date ("Severance Benefit"), subject to withholding for appropriate items, including, without limitation, social security, Medicare and federal, state and local withholding taxes as required by applicable law; and

4.2 although not obligated to do so, for the first nine (9) months following the Termination Date, WEST will pay the cost of the continuation coverage for health insurance coverage provided under WEST's current group health insurance plan to which you are entitled as of the Termination Date ("Extended Insurance Benefits"); you will also be entitled to a conversion of that coverage at your own cost to an individual policy to the extent provided under applicable law and the subject insurance policy

5. Release by Peter. In consideration of WEST's provision of the Severance Benefit and the Extended Insurance Benefits and other good and valuable consideration, the receipt and sufficiency of all of which are hereby acknowledged by you, you do hereby additionally acknowledge, represent, warrant, covenant and agree that:

5.1 except for sums due to you pursuant to the terms of this Letter Agreement, you have received payment in full of all sums due to you from WEST arising from or related in any way to your employment with WEST for services performed by you in behalf of WEST, including, without limitation, for wages, commissions, overtime, vacation pay or reimbursement for expenses incurred by you on behalf of WEST, and all of your earned and accrued vacation, holiday and sick-pay benefits, if any, have been fully used or you have been fully compensated therefor; and

5.2 you do hereby remise, release and forever discharge WEST, its officers, directors, shareholders, employees, attorneys, agents, successors and assigns, of and from all manner of action, causes and causes of action, suits, debts, sums of money, accounts, reckonings, bonds, bills, specialties, covenants, controversies, agreements, promises, variances, trespasses, demands, judgments, executions, costs, expenses, claims or demands whatsoever, at law or in equity, existing at or arising prior to the date hereof, whether known or unknown, liquidated or unliquidated, including, without limitation, any and all claims, demands and causes of action of any nature whatsoever arising out of or in any way related to your employment or termination of employment with WEST; you further acknowledge and understand that, excepting only WEST's obligations pursuant to this Letter

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Page -3-  
Mr. Peter Janotzki  
February 5, 1998

Agreement, as a part of this Letter Agreement, among other things, you are releasing WEST from any and all claims you may have against WEST relating to your employment or termination of employment with WEST, including, without limitation, claims for alleged discrimination that arise under the Age Discrimination in Employment Act, Title VII of the Civil Rights Act of 1964 and the Civil Rights Act of 1981, the Illinois Human Rights Act, the Equal Pay Act, the Rehabilitation Act of 1973, Section 1981 of the Civil Rights Act of 1986, any claim for wrongful discharge, retaliatory discharge or discrimination in any suit or proceeding which may be brought against WEST by you or on your behalf under any federal, state or municipal law, rule or regulation, or pursuant to contract, or otherwise, and any and all claims which you, your heirs, agents, assigns or legal representatives, hereafter shall or may have against WEST, its officers, directors, shareholders, employees, attorneys, agents, successors or assigns, for, upon or by reason of any matter, cause or thing whatsoever, existing on or at any time prior to the date of this Letter Agreement.

6. Release and Agreements of WEST. For and in consideration of your execution of this Letter Agreement, and for other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged,

6.1 WEST, for itself, its officers, directors, shareholders, employees, attorneys, agents, successors and assigns, does hereby remise, release and forever discharge you, your heirs, agents, assigns and legal representatives, of and from all manner of action, claims and causes of action, suits, debts, sums of money, accounts, reckonings, bonds, bills, specialties, covenants, controversies, agreements, promises, variances, trespasses, demands, judgments, executions, costs, expenses, claims or demands whatsoever, at law or in equity, existing at or arising prior to the date hereof, whether known or unknown, liquidated or unliquidated, including, without limitation, claims arising from or in any way related to your employment or termination of employment with WEST, and any and all claims which WEST, its officers, directors, shareholders, employees, attorneys, agents, successors or assigns hereafter shall or may have against you, your heirs, agents, assigns, or legal representatives, for, upon or by reason of any matter, cause or thing whatsoever, existing on or at any time prior to the date of this Letter Agreement; and

6.2 If you are not in default of your obligations pursuant to this Letter Agreement,

6.2.1 should you hereafter make a claim to receive unemployment compensation benefits, WEST will not oppose the same; and

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Mr. Peter Janetzki  
February 5, 1998

8.2.2 If WEST is heretofore requested to respond to a reference check on you, WEST will advise all inquirers that you were employed by WEST as Vice President - Exports, and that your parting with WEST was by mutual agreement.

7. Purchase of the Peter Shares. You have represented and warranted to WEST that you are the sole owner of the Peter Shares, free and clear of all liens, claims or encumbrances of any kind or nature whatsoever. As soon as practicable after the Termination Date and our execution of this Letter Agreement, but not prior to eight (8) days after our execution of this Letter Agreement and provided the same is not revoked by you during such eight- (8) day period ("Share Closing Date"), you shall sell to or as directed by WEST, and WEST shall purchase or cause to be purchased from you, all of the Peter Shares for the sum of Thirty-three thousand Two Hundred Seventy Dollars (\$33,270.00) ("Share Purchase Price"). On the Share Closing Date, you shall execute and deliver to WEST certificates evidencing your ownership of the Peter Shares, together with collateral assignments separate from certificates duly executed by you, and otherwise in form and substance sufficient to transfer ownership of the Peter Shares to WEST or as WEST shall direct, and upon the execution and delivery of the same by you to WEST, WEST shall cause the Share Purchase Price to be delivered to you.

8. Additional Representations, Warranties, Covenants and Agreements of Peter. You do hereby additionally acknowledge, represent, warrant, covenant and agree that:

8.1 This Letter Agreement was signed and delivered by you as your free and voluntary act after you were given an opportunity to review this Letter Agreement and all of its terms for a period of twenty-one (21) days and, after having the opportunity and being encouraged by WEST to discuss the provisions of this Letter Agreement with third parties not affiliated with WEST, including, without limitation, an attorney of your choosing;

8.2 during your employment with WEST, WEST divulged to you or caused you to come in possession of or have knowledge of the Confidential Information, and from and after the date of this Letter Agreement, you will not, directly or indirectly, individually or in combination with any other person or entity, divulge or disclose to any third party any of the Confidential Information without, in each instance, the prior written consent of WEST; you further acknowledge that such restriction is reasonable as to scope and duration and necessary to reasonably protect the proprietary interests of WEST in all of the Confidential Information;

8.3 the terms and provisions of this Letter Agreement are, and shall always be treated by you, as confidential and secret; provided, however, the terms hereof may be disclosed by you to members of your immediate family and to your legal, accounting, tax and financial advisors;

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Mr. Peter Janotzki  
February 5, 1998

8.4 WEST is materially relying upon each of your acknowledgments, representations, warranties, covenants and agreements set forth by you in this Letter Agreement and, without such, WEST would not execute this Letter Agreement or provide you the Severance Benefits or the Extended Insurance Benefits;

8.5 WEST has advised you of your right to consider this Letter Agreement and its terms for a period of up to twenty-one (21) days prior to your execution of the same, and of your right to revoke this Letter Agreement at any time during the seven- (7) day period immediately after you and WEST sign this Letter Agreement;

8.6 from and after the execution of this Letter Agreement by you, you will not disseminate any comments or any information to any third party of a derogatory or disparaging nature regarding WEST, or its officers, directors, shareholders, employees, attorneys, agents, business operations personnel, affiliates or subsidiaries, including, without limitation, any comments related to the facts or circumstances which gave rise to the termination of your relationship with WEST; and

8.7 the terms of this Letter Agreement, to the extent they contain any consideration provided by WEST, including, without limitation, the provision of Severance Benefits or the Extended Insurance Benefits, are not intended nor should they be construed as any admission of liability by WEST.

9. Injunctive Relief. You understand, acknowledge and agree that it is impossible to measure in money the damages which will accrue to WEST by reason of the breach by you of any of your representations, warranties, covenants, agreements or obligations pursuant to this Letter Agreement. Therefore, if any action or proceeding is commenced by or on behalf of WEST to enforce against you any of the terms of this Letter Agreement, you do hereby waive the claim or defense thereto that WEST has an adequate remedy at law, or has not been or is not being irreparably injured by such breach, and the same shall be enforceable in a court of equity by temporary and permanent injunction or restraining order, and in any such action, WEST shall also be entitled to any and all other remedies and damages available for any violation or to restrain further violation of the provisions of this Letter Agreement by you.

10. Notices. All notices, demands and communications required or desired to be given in connection with this Letter Agreement shall be in writing and shall be deemed to be duly given on the date received, if delivered personally, or on the third day after mailing, if sent by registered or certified mail, return receipt requested, postage prepaid. All such notices, demands and communications shall be addressed at the location set forth below the signatures of the respective parties hereto, or to such other person at such location as either party hereto may subsequently designate in a similar manner.

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Mr. Peter Janetzki

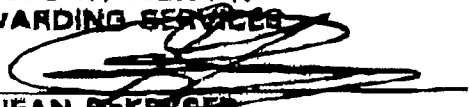
February 5, 1998

If the foregoing accurately documents your understanding of our agreement with respect to the terms and conditions of your termination of employment with WEST, please indicate the same by signing the enclosed copy of this Letter Agreement where indicated and returning the same to my attention.

Sincerely,

WORLD EXPRESS SHIPPING,  
TRANSPORTATION AND  
FORWARDING SERVICES

By:

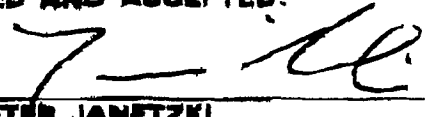
  
JEAN BOKRYGER  
President

Address: Hartford Centre  
729 Route 53, Suite 307  
Bensenville, Illinois 60106

Dated: 02/05, 1998

APPROVED AND ACCEPTED:

By:

  
PETER JANETZKI

Address: 621 Newbury Lane  
Schaumburg, Illinois 60173

Dated: 2/8, 1998